

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 13

Honorable Daniel T. Nishigaya

R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: June 10, 2026

TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

IN-PERSON APPEARANCES: Department 13 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court **strongly** encourages **in-person** appearances for any **contested** law-and-motion matter.

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 13 uses UDC as its remote platform. Please click on this link if you need to appear remotely, and then scroll down to click the link for Department 13:

<https://santaclara.courts.ca.gov/online-services/remote-hearings>

The Court **strongly** encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) CourtCall is no longer available.

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https://www.scsccourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Go to <https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	21CV391881	Amir Weiner et al vs Matthew Carpenter et al	Motion: Seal Records The unopposed and renewed motion is GRANTED. The Court finds that (1) there is an overriding interest supporting sealing of the records; (2) there is a substantial probability that the interest will be prejudiced absent sealing; (3) the sealing order under the circumstances is narrowly tailored to serve the overriding interest; and (4) there is no less restrictive means of meeting that interest. Defendant and Cross-Defendant Matthew Ming Carpenter shall prepare and submit the final order, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.

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LINE #	CASE #	CASE TITLE	RULING
LINE 2	21CV391881	Amir Weiner et al vs Matthew Carpenter et al	Motion: Seal Records The unopposed and renewed motion is GRANTED. The Court finds that (1) there is an overriding interest supporting sealing of the records; (2) there is a substantial probability that the interest will be prejudiced absent sealing; (3) the sealing order under the circumstances is narrowly tailored to serve the overriding interest; and (4) there is no less restrictive means of meeting that interest. Defendant and Cross-Defendant Matthew Ming Carpenter shall prepare and submit the final order, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.
LINE 3	24CV450793	Esther Mayora vs Volkswagen Group of America, Inc.	Motion: Compel Deposition Ctrl Click (or scroll down) on Line 3 for tentative ruling.
LINE 4	24CV453955	Vincent Marino, Jr. vs County of Santa Clara et al	Hearing: Demurrer Ctrl Click (or scroll down) on Line 4 for tentative ruling.

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LINE #	CASE #	CASE TITLE	RULING
LINE 5	24CV453955	Vincent Marino, Jr. vs County of Santa Clara et al	Motion: Strike Ctrl Click (or scroll down) on Line 4 for tentative ruling.
LINE 6	24CV455441	MARIA LOLOGO vs FORD MOTOR COMPANY et al	Motion: Summary Judgment/Adjudication Ctrl Click (or scroll down) on Line 6 for tentative ruling.
LINE 7	25CV458859	WELLS FARGO BANK, NA vs NOEL MATIAS	Motion: Judgment on Pleadings The Court has received no opposition from Defendant. “[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious.” (<i>Sexton v. Super Ct.</i> (1997) 58 Cal.App.4th 1403, 1410.) The Court has considered Plaintiff’s arguments. Good cause appearing, the motion is GRANTED. The August 31, 2026, court trial is VACATED. Plaintiff to prepare the final order and proposed judgement, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.

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LINE #	CASE #	CASE TITLE	RULING
LINE 8	25CV462393	Amanda Hulse vs Mercedes-Benz USA, LLC	Motion: Compel Ctrl Click (or scroll down) on Line 8 for tentative ruling.
		9:01 CALENDAR	
9:01 LINE 1	21CV377860	George Jones vs Michael Liddle et al	Hearing: Order of Examination Parties to appear if and as needed for continuing examination.

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Calendar Line 3

Case Name: *Esther Mayora vs Volkswagen Group of America, Inc.*

Case No.: 24CV450793

Plaintiff has filed a late opposition to Defendant's motion for an order compelling Plaintiff to appear for deposition by remote electronic means and to produce documents or in the alternative continue trial. To some extent, the Court understands the confusion. Subsequent to the filing of the motion, the Court, by separate application, did continue the trial date. The order continuing trial, however, was based on Defendant's request that the Court *either advance* the hearing on this motion *or* continue the trial. The Court continued the trial. The Court did not advance the hearing on this motion, thereby leaving this motion on calendar for June 10, 2026.

Although, Defendant did not withdraw the instant motion as moot, under the circumstances here, the Court finds that it is moot. The Court is aware that as a part of a separate stipulation and proposed order, the parties indicated that "Plaintiff's counsel is in the process of confirming earliest availability to produce Plaintiff for deposition." Trial is now set for February 16, 2027. So long as Plaintiff, in good faith, properly sits for deposition within the parameters of the currently set trial date, Court involvement should not be necessary.

The Court will prepare the final order.

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Calendar Line 4 & 5

Case Name: *Vincent Marino, Jr. v. County of Santa Clara*

Case No.: 24CV453955

Before the Court is Defendant County of Santa Clara's ("Defendant" or the "County") demurrer to the First Amended Complaint ("FAC") filed by Plaintiff Vincent Marino, Jr. ("Plaintiff") and motion to strike portions contained therein.

This is an action for negligence. According to the allegations of the FAC, on January 1, 2024, Plaintiff was admitted to the Santa Clara Valley Medical Center (the "Medical Center") where he presented with persistent nausea, lightheadedness, shortness of breath, and black stool. (FAC, ¶¶ 16-17.) Plaintiff had a history of chronic kidney disease and diabetes and was found to be suffering from severe sepsis. (*Id.*, ¶ 17.) While he was admitted, Plaintiff suffered from a cerebrovascular accident due to embolism of the left vertebral artery, which resulted in oropharyngeal dysphagia, apraxia, speech and language deficits and aphasia. (*Ibid.*) He also suffered from metabolic encephalopathy and stroke, was intubated, and required a gastrostomy tube for nutrition and hydration. (*Id.*, ¶ 25.)

Defendants knew that Plaintiff was dependent upon the Medical Center for medical and custodial care. (FAC, ¶ 18.) The Medical Center's failure to provide adequate assistance caused Plaintiff to suffer significant injuries, including a Stage IV pressure ulcer, which Plaintiff was at a high risk for developing. (FAC, ¶¶ 20, 25.) Because of his condition, Plaintiff required physical assistance with bed mobility to relieve pressure on areas of the body susceptible to developing pressure wounds. (*Id.*, ¶ 25.)

Defendants failed to continually assess and monitor Plaintiff for skin breakdown or changes in health condition, failed to keep him clean and dry, failed to reposition him every two hours, and failed to provide discharge planning and instruction relative to the pressure wound. (FAC, ¶ 26.) As a result, Plaintiff developed a serious pressure ulcer to his sacrum which progressed to a Stage IV pressure ulcer. (*Id.*, ¶¶ 25, 28.)

On January 8, 2024, wound care nurse, Matthew Lee, R.N. ("Lee") was consulted for moisture associated skin damage to Plaintiff's buttocks. (FAC, ¶ 29.) Lee did not visualize the wound, as Plaintiff was being transported to the radiology department for an MRI. (*Ibid.*) A plan was implemented to care for Plaintiff's skin. (*Ibid.*)

On January 9, 2024, another wound care nurse evaluated Plaintiff and noted the wound was dark brown, there was skin loss and drainage, and Plaintiff was suffering from frequent loose stool and urine. (FAC, ¶ 30.) Despite recommendations, the Medical Center failed to reposition Plaintiff and he was left four hours soiled, which resulted in further skin breakdown. (*Id.*, ¶ 31.) Plaintiff was not seen by wound care again until February 1, 2024 and that time, the top layers of skin on Plaintiff's coccyx and buttocks had necrosed. (*Id.*, ¶ 32.)

On February 7, 2024, Dr. Kelly Higa ("Dr. Higa") evaluated Plaintiff for possible debridement of the large sacral ulcer and Dr. Higa noted that the ulcer was due to immobility and recommended wound care and collagenase treatment. (FAC, ¶ 33.) The wound was debrided on February 14, 2024. (*Ibid.*)

Between February 1, 2024 and February 20, 2024, the Medical Center staff failed to follow provider recommendations and Plaintiff was not repositioned every two hours, he spent extended periods of time on his back, and perineal care was not promptly provided resulting in Plaintiff sitting in urine and feces for extended periods of time. (FAC, ¶ 34.)

Plaintiff initiated this action on December 13, 2024, with the filing of the Complaint, asserting claims for: (1) dependent abuse/neglect pursuant to Welfare and Institutions Code §§ 15600, et. seq.; and (2) negligence/willful misconduct. The County subsequently demurred to both claims, which Plaintiff opposed. On November 13, 2025, the Court issued a tentative ruling sustaining the demurrer to the first cause of action without leave to amend and sustaining the demurrer to the second cause of action with leave to amend. Plaintiff did not contest the ruling at the hearing the following day, and therefore the Court adopted the tentative as its final ruling.

On December 3, 2025, Plaintiff filed the operative FAC. On January 20, 2026, the County filed the instant demurrer to the first cause of action on the grounds of uncertainty¹ and failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subds. (e) and (f).) The County also filed a motion to strike portions of the FAC. Plaintiff opposes both motions.

The Court previously sustained the demurrer to the first cause of action in the Complaint based on Plaintiff's failure to comply with the claims presentation requirement of the Government Claims Act. The Court concluded that the government claim submitted to the County did not mention neglect or failure to provide Plaintiff with wound care or follow a specified treatment plan. As such, the County had no notice that it might be sued for dependent abuse (i.e., violation of Welfare & Institutions Code §§ 15600 et seq.), a claim which was *distinct* from a negligence cause of action. Because this failure could not be corrected by amendment, the demurrer to the first cause of action was sustained without leave to amend.

The County's demurrer to the negligence/willful misconduct cause of action was sustained based on Plaintiff's failure to identify a statutory basis for the claim. As the Court explained in its order, all government tort liability is dependent on the existence of an authorizing statute or "enactment," and "to state a cause of action [in such a circumstance] every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty." (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802 [internal citations omitted].) As such, a demurrer may be sustained where a plaintiff fails to allege a statutory basis for liability against the public entity. (See e.g., *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795; *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1179 *Lehto v. City of Oxnard* (1985) 171 Cal.App.3d 285, 292 ["litigant seeking to plead the breach of a mandatory duty must specifically allege the applicable statute or regulation"]. No statutory authority was pleaded in the Complaint and because the claim was required to be pleaded with particularity, Defendant's demurrer was sustained.

¹ The demurrer on this ground is OVERRULED.

Here, the County maintains that the FAC remains “largely unchanged” from the allegations of the Complaint, with Plaintiff’s amendments consisting of the following:

- Two references to Plaintiff’s Guardian Ad Litem (FAC, pp. 1:20-21; 4:18-19);
- A reference that Plaintiff “brings this cause of action under Government Code section 815.2(a)” without any additional facts;
- A retitling of the first cause of action to read “negligence/willful misconduct” rather than “dependent adult abuse/neglect” as was originally alleged.

Defendant argues that Plaintiff’s negligence/willful misconduct claim still fails to state a cause of action for the following reasons: (1) Plaintiff fails to identify a statutory basis for his claim; (2) as a matter of law, Plaintiff cannot state a direct liability claim against the County for alleged negligent hiring, training, supervision or retention of “unfit” employees; (3) Plaintiff fails to support his vicarious liability claim with well pleaded, particularized facts; and (4) Plaintiff’s willful misconduct claim is not supported by well-pleaded facts.

The County first argues that Plaintiff cannot save his claim “with a passing reference to Government Code section 815.2(a) (“Section 815.2”),” and cites to the Court’s order on the demurrer as “acknowledge[ing] that Plaintiff had asserted that his claim was advanced pursuant to Section 815.2(a) but found that Plaintiff’s claim was nonetheless ‘insufficient.’” But the Court’s order was not taking issue with the statutory authority cited and whether Section 815.2, subdivision (a), could provide an adequate basis for Plaintiff’s negligence claim. Instead, the problem identified was that this statute was cited in Plaintiff’s opposition to the demurrer but *not* pleaded in his actual complaint. Now that it has been, the question is whether this statute can provide an adequate basis to state a claim for negligence/willful misconduct against the County and if so, has Plaintiff adequately pleaded the claims.

Section 815.2, subdivision (a), provides: A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” Thus, this statute “expressly makes the doctrine of respondeat superior applicable to public employers.” (*Hoff v. Vacaville Unified School Dist.* (1998) 19 Cal.4th 925, 932.) The County insists that Plaintiff has not met the required particularity standard for this claim. The Court disagrees, in part. Plaintiff specifically pleads what standard of care was required to prevent the development of pressure wounds and to assess and monitor him for skin breakdowns and changes in his conditions and how those attending to him breached or failed to meet that standard by “fail[ing] to keep [him] clean and dry, fail[ing] to turn and reposition him every two hours, and fail[ing] to provide discharge planning and instruction relative to the pressure wound.” (FAC, ¶ 26.)

However, the Court does agree with the County that Plaintiff has not alleged that the purported acts or omissions were performed by Defendant’s employees in the scope of their employment such that liability extends to the County under Section 815.2, subdivision (a). Further, Plaintiff has not identified these employees, which is required for vicarious liability to attach. (See, e.g., *Koussaya v. City of Stockton* (2020) 54 Cal.App.5th 909, 944 [for “vicarious public entity liability to attach, a public employee, either named as a defendant or at least ‘specifically identified’ by the plaintiff, must have engaged in an act or omission giving rise to that employee’s tort liability”].)

To the extent that Plaintiff's first cause of action is attempting to state a claim for negligent hiring, supervision and retention, the Court also agrees with Defendant that this claim has not been pleaded with the requisite particularity. An "employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. [Citation.] Liability is based upon the facts that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes." (*Alexander v. Community Hospital of Long Beach* (2020) 46 Cal.App.5th 238, 264.) Under Section 815.2, subdivision (a), "a public entity may be held vicariously liable for the negligence of administrators or supervisors in hiring, retaining, and supervising an employee who commits a tort." (*Estate of Mendez v. City of Ceres* (E.D. Cal. 2019) 390 F.Supp.3d 1189, 1214.) No facts are alleged in the FAC that specific administrators or supervisors knew or should have known that hiring certain individuals created a particular risk or hazard and that harm of the type suffered by Plaintiff materialized as a result.

Further, as Defendant maintains, absent the existence of a special relationship between the supervisors/administrators who are responsible for the negligent hiring, supervision and retention of the employees who purportedly engaged in negligent conduct and Plaintiff, "there can be no individual liability to third parties [based on this theory of liability] and hence no vicarious liability under section 815.2." (*William S. Hart Union* (2012) 53 Cal.4th 861, 877.) No such relationship has been pleaded in the FAC.

Given these deficiencies, the County's demurrer to the first cause of action on the ground of failure to state sufficient facts is SUSTAINED WITH 10 DAYS' LEAVE TO AMEND. Consequently, the motion to strike is MOOT.

The Court will prepare the final order.

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Calendar Line 6

Case Name: *Maria Aroche Lologo v. Ford Motor Company*

Case No.: 24CV455441

Defendant Ford Motor Company's ("Ford" or "Defendant") motion for summary judgment, or alternative, summary judgment, in its favor and against Plaintiff Maria Aroche Lologo ("Plaintiff"). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

I. BACKGROUND & FORD'S UNDISPUTED MATERIAL FACTS

This is an action for violations of the Song-Beverly Warranty Act ("Song-Beverly" or the "Act") (Civ. Code, §§ 1790 et seq.). Plaintiff alleges that she purchased a vehicle manufactured and/or distributed by Ford (the "Vehicle") and that various defects manifested during the applicable warranty period, including but not limited to transmission defects, engine defects and electrical defects. (Complaint, ¶¶ 10, 15-19.) Based on these alleged violations, she initiated the instant action with the filing of the Complaint on December 31, 2024, asserting claims for: (1) violation of Civil Code § 1793.2, subd. (d); (2) violation of Civil Code § 1793.2, subd. (b); (3) violation of Civil Code § 1793.2, subd. (a)(3); (4) breach of implied warranty of merchantability; (5) negligent repair; (6) fraudulent inducement-concealment.²

According to the materials submitted by Ford in support of its motion, on November 24, 2018, Plaintiff purchased the Vehicle, a used 2017 Ford Escape with 44,433 miles on the odometer. (Defendant's Separate Statement of Undisputed Materials in Support of Motion for Summary Judgment/Adjudication ("UMF"), No. 1.) The Vehicle was originally purchased new by a prior customer on June 14, 2016, and came with Ford's New Vehicle Limited Warranty (the "Warranty"), which includes a three-year/36,000-mile Bumper-to-Bumper Warranty (whichever comes first) and a five-year/60,000-mile Powertrain Warranty (whichever comes first). (UMF Nos. 3, 4.) The Warranty began to run on the date of the original purchase. (UMF No. 5.)

The Vehicle was present for five out-of-warranty repairs- on January 14, 2020, December 9, 2021, September 20, 2022, February 5, 2024 and July 17, 2024- during which various repairs were made, including battery and BMS sensor replacements and reinstallation of fan relays. (UMF Nos. 6-10.) These issues, if covered at all, would have fallen under various provisions in the Warranty. However, the Warranty had expired at the time of these presentations for repair as the Vehicle was beyond the allowable miles of coverage. (*Id.*) The Vehicle was also presented for routine maintenance on June 16, 2020, January 19, 2021, July 16, 2021, June 20, 2022, September 15, 2022, February 3, 2023, September 1, 2023, April 12, 2024, July 17, 2024; and September 6, 2024. (UMF No. 11.)

Ford filed the instant motion for summary judgment/adjudication on April 9, 2026. No opposition has been filed by Plaintiff.

² All claims are asserted against Ford, excluding the fifth for negligent repair, which was asserted against All Star Ford. Plaintiff dismissed All Star Ford as a party in this action on May 7, 2025.

II. ANALYSIS

A. Burden of Proof

“A defendant seeking summary judgment [or adjudication] must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action ... The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72 [internal citations omitted].)

“The ‘tried and true’ way for defendants to meet their burden of proof on summary judgment motions is to present affirmative evidence (declarations, etc.) negating, as a matter of law, an essential element of plaintiff’s claim.” (Weil & Brown, Cal. Prac. Guide; Civ. Proc. Before Trial (The Rutter Group 2014) ¶ 10:241, p. 10-104, citing *Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 334.) “The moving party’s declaration and evidence will be strictly construed in determining whether they negate (disprove) an essential element of plaintiff’s claim ‘in order to resolve any evidentiary doubts or ambiguities in plaintiff’s (opposing party’s) favor.’” (*Id.*, ¶ 10:241.20, p. 10-105, citing *Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.)

“Another way for a defendant to obtain summary judgment is to ‘show’ that an essential element of plaintiff’s claim cannot be established. Defendant does so by presenting evidence that plaintiff ‘does not possess and cannot reasonably obtain, needed evidence’ (because plaintiff must be allowed a reasonable opportunity to oppose the motion).” (*Id.*, ¶ 10:242, p. 10-105, citing *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854-855.) “Such evidence usually consists of admissions by plaintiff following extensive discovery to the effect that he or she has discovered nothing to support an essential element of the cause of action.” (*Id.*)

B. Breach of Express Warranty Claims (First, Second and Third Causes of Action)

Plaintiff’s first three causes of action allege violations of the Song-Beverly Act, particularly Civil Code section 1793.2 (“Section 1793.2”). However, as Ford argues, Plaintiff’s claims are barred because Section 1793.2 only applies to a “new motor vehicle,” which does *not* include a used vehicle purchased with an unexpired manufacturer’s new car warranty like Plaintiff’s. (See *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189, 198-199; UMF Nos. 4-10.) Ford also establishes that these claims are barred because Plaintiff did not present the Vehicle for a single *warranty* repair as the Warranty had expired by the time she brought the Vehicle in for repairs. Section 1793.2, subdivision (d), does not require the manufacturer to make restitution or replace a vehicle where there were no repeat opportunities to repair the vehicle to conform with the warranty as a matter of law. (See *Silvio v. Ford Motor Company* (2003) 109 Cal.App.4th 1205, 1207.)

Thus, Ford meets its initial burden on these claims and Defendant, by failing to file an opposition, has not demonstrated the existence of a triable issue of material fact. Accordingly, Ford is entitled to summary adjudication of the first, second and third causes of action.

C. Breach of Implied Warranty (Fourth Cause of Action)

Next, Ford asserts that it is entitled to summary adjudication of Plaintiff's fourth cause of action because, as the Vehicle was purchased used, liability for breach of the implied warranty does not extend to it.

Indeed, "[o]nly distributors or sellers of used goods- not *manufacturers* of new goods- have implied warranty obligations in the sale of used goods." (*Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 398.) Thus, "liability for breach of implied warranty lies with distributors and retailers, not the manufacturer" (*Id.*) Here, Plaintiff purchased a used vehicle. (UMF No. 1.) Consequently, her breach of implied warranty claim against Ford- the Vehicle's manufacturer- fails as a matter of law. Again, in the absence of an opposition, no triable issue of material fact has been shown to exist. Therefore, Ford is entitled to summary adjudication of this claim.

D. Fraudulent Inducement-Concealment (Sixth Cause of Action)

Ford last asserts that it is entitled to summary adjudication of Plaintiff's remaining claim for fraud because (1) there is no evidence that Ford had prior knowledge of a transmission defect and (2) there is no evidence there were any presentations or repairs related to the transmission or that there was a transmission defect in the Vehicle.

As a general matter, the elements of a claim for fraudulent inducement based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (*Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612-613.)

To establish Plaintiff's lack of evidence of Ford's prior knowledge of a transmission defect, Defendant submits Plaintiff's responses to discovery, which is characterized as "factually devoid." When a defendant moves for summary judgment on the ground that a plaintiff has "no evidence" to establish an essential element of a cause of action, the defendant must support such a motion with discovery admissions or other admissible evidence following extensive discovery, showing that "plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Aguilar, supra*, 25 Cal.4th at pp. 854-855.) It is not enough for a moving defendant to show merely that a plaintiff currently "has no evidence" on a key element of the claim. (See *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891, citing *Aguilar* ["the absence of evidence to support a plaintiff's claim is insufficient to meet the moving defendant's initial burden of production. The defendant must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim."].) "Such evidence may consist of the deposition testimony of the plaintiff's witnesses, the plaintiff's *factually devoid discovery responses*, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action." (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 110, emphasis added.)

Ford conducted written discovery in this matter, including propounding Special Interrogatories and Requests for Production of Documents. (UMF No. 17.) On September 2, 2025, Plaintiff served responses to Ford's Special Interrogatories and produced 24 pages of documents in response to the Requests for Production, which consisted of the Retail Installment Sales Contract, some repair orders for the Vehicle, Plaintiff's Insurance information, and Registration Card for the Vehicle. (UMF No. 18, 19, 24.) In its discovery requests to Plaintiff, Ford asked for all facts, persons, and documents to support Plaintiff's Fraudulent Inducement-Concealment cause of action. (UMF No. 20.) Plaintiff's responses are indeed devoid of facts, merely referring Ford to Plaintiff's document production. No facts are identified that indicate exclusive knowledge by Ford of the purported defects, and the documents produced by Plaintiff (see above) fail to show the same. Ford additionally submits *affirmative* evidence that the Vehicle was *never* presented for a transmission-related concern or issue. (UMF Nos. 13, 25.) Given this, the Court finds that Defendant has met its initial burden on this claim. In the absence of the existence of a triable issue, Ford is entitled to summary adjudication of the sixth cause of action.

In accordance with the foregoing, Ford's motion for summary judgment is GRANTED.

The July 16, 2026 Trial Assignment hearing and the July 20, 2026 trial dates are VACATED.

Ford shall prepare and submit the final order and proposed judgement, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.

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Calendar Line 8

Case Name: *Amanda Hulse v. Mercedes-Benz USA, LLC et al.*

Case No.: 25CV462393

Plaintiff seeks an order compelling Defendant to provide a further response to Special Interrogatory, Set One, No. 30.³

Defendant's first argument in opposition is that it complied with 137 of Plaintiff's 138 discovery requests. But noncompliance with a single request is not excused by compliance with all others.

As for the single interrogatory at issue, Plaintiff argues that Defendant's objections are without merit or too general. Although Defendant's objections to SROG No. 30 are boilerplate and asserted to nearly every interrogatory, Defendant wisely has not relied on these objections to avoid answering the interrogatory. Instead, Defendant maintains that it properly responded to Interrogatory No. 30 by incorporating its document production via Code of Civil Procedure Section 2030.230. A responding party may respond to an interrogatory by specifying the writings from which the answer may be derived if (1) the answer would require the preparation of a compilation, abstract, audit, or summary of the documents, and (2) the burden or expense of preparing it would be substantially the same for either party. (Code Civ. Proc., § 2030.300.) These criteria are not met here. SROG No. 30 simply asks Defendant to identify who made the decision not to replace or repurchase Plaintiff's vehicle. Defendant does not need to prepare a summary of any documents to answer the interrogatory - it needs only to provide a person's name, home address, home telephone number, business address, and business telephone number. Requiring Plaintiff to dig through 112 pages of documents is unreasonable and would be more burdensome than simply requiring Defendant, the holder of the information, to provide a response to an inquiry the Court finds unquestionably relevant and discoverable.

The Court notes that Defendant states it is willing to meet and confer regarding the interrogatory at issue, yet in the February 6 correspondence, Defendant's counsel stated that Defendant "[stood] by its response" and would "not agree to supplement it." (Faulk Decl., Ex. C.) The time to be "amenable to meet and confer" was before the filing of motion was necessary.

Plaintiff's motion is GRANTED.

³ In her notice of motion, Plaintiff addresses the timeliness of the motion. A motion to compel further responses must be filed within 45 days of the service of the verified response or verified supplemental response, or the propounding party's right to compel has been waived. (Cal. Civ. Proc. § 2030.300(c).) "Unsworn responses are tantamount to no responses at all." (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.) Defendant served unverified responses to Special Interrogatories, Set One, on December 4, 2025, signed by counsel purporting to represent "GENERAL MOTORS LLC." (Migler Decl., Ex. A.) On January 15, 2026, Defendant supplemented its responses. (Faulk Decl. ¶ 5.) On February 6, 2026, in response to Plaintiff's concerns regarding the verifications, Defendant stated: "[v]erifications were served on February 5, 2026." (Faulk Decl., Ex. C.) Defendant does not challenge the timeliness of the motion and based on the above, Plaintiff's motion was filed timely.

Defendant shall provide a further, verified, substantive, code-complainant answer, without objection, to Special Interrogatory Number 30 within 10 days of the date of this hearing.

The Court will prepare the final order.

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